

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DARLIN SOTO,

Plaintiff,

-against-

POLICE OFFICER DYWAYNE HARRIS (Shield #10473) and
THE CITY OF NEW YORK,

Defendants.

Filed: _____

INDEX NO.

Plaintiff designates Bronx
County as the place of trial.

S U M M O N S

The basis of venue is
the County in which the
cause of action arose.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
February 27, 2020

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

DYWAYNE HARRIS (SHIELD #10473)
44th Precinct
2 East 169 Street
Bronx, New York 10452

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DARLIN SOTO,

Plaintiff,

-against-

POLICE OFFICER DYWAYNE HARRIS (Shield #10473) and
THE CITY OF NEW YORK,

Defendants.

INDEX NO.

VERIFIED COMPLAINT

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, DARLIN SOTO, at all times herein mentioned was and still is a resident
of the County of Bronx and the State of New York.

2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation,
incorporated pursuant to the laws of the State of New York, which operates the New York City
Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant
officers herein.

3. Defendant POLICE OFFICER DYWAYNE HARRIS, shield #10473 (hereinafter
"HARRIS") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as
agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

4. On or about February 27, 2017, the defendant POLICE OFFICER HARRIS was assigned
to the 44th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is
being sued in both his individual and official capacities.

5. At all relevant times hereto, Defendant HARRIS was acting under the color of state
and local law. Defendant is sued in his individual and official capacities. At all relevant times

hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

6. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

7. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendant HARRIS (Shield #10473).

8. On February 27, 2017, the plaintiff DARLIN SOTO (who was an infant at the time) and his cousin were returning from a friend's house at around 7:00 pm when they were approached at the corner of East 172 Street and the Grand Concourse, Bronx, New York by two officers from the 44th Precinct. After brief questioning, plaintiff was handcuffed and removed to the 44th Precinct.

9. The plaintiff's father is not notified of his infant son's arrest but ultimately learns that he is being held at the 44th Precinct. The plaintiff is denied the ability to speak with his father when his father arrives at the precinct.

10. At approximately 1:00 a.m., the plaintiff is moved from the 44th Precinct to the Family Court. Plaintiff is not brought before the judge until around midnight of the next day (February 28, 2017) /early morning hours of February 29, 2017 at which time he is charged with PL 160.15, 160.10, 160.05 and related charges and released on his own recognizance.

11. During the ensuing six (6) months plaintiff was required to appear in Court multiple times until the charges were dismissed and sealed on September 27, 2017.

12. Based upon information and belief, the officers, including the individually named

defendant HARRIS, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

AS AND FOR A FIRST CAUSE OF ACTION

ON BEHALF OF PLAINTIFF DARLIN SOTO

Pursuant to § 1983 (FALSE ARREST)

13. Paragraphs 1 through 12 of this complaint are hereby realleged and incorporated by reference herein.

14. That Defendant HARRIS had neither valid evidence for the arrest of DARLIN SOTO nor legal cause or excuse to seize and detain him.

15. That in detaining DARLIN SOTO and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. DARLIN SOTO was but one of those persons.

16. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

17. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

18. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of DARLIN SOTO's rights alleged herein.

19. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of DARLIN SOTO's rights, subjected DARLIN SOTO to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

20. That Defendant HARRIS had the opportunity to intervene, and failed to do so, to prevent violations of DARLIN SOTO's civil rights, including but not limited to the right to be free from being falsely arrested.

21. By reason of the foregoing, DARLIN SOTO suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARLIN SOTO

Pursuant to § 1983 (MALICIOUS PROSECUTION)

22. Paragraphs 1 through 21 are hereby realleged and incorporated by reference herein.

23. That Defendants, with malicious intent, arrested DARLIN SOTO and initiated a criminal proceeding despite the knowledge that DARLIN SOTO had committed no crime.

24. That all charges against DARLIN SOTO were terminated in his favor.

25. That there was no probable cause for the arrest by HARRIS and ensuing criminal proceeding.

26. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of DARLIN SOTO's rights, deprived DARLIN SOTO of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

27. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, DARLIN SOTO was maliciously prosecuted despite the fact that he had committed no violation of the law.

28. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

29. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

30. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of DARLIN SOTO's rights alleged herein.

31. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

32. That upon information and belief, in 2017, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

33. That by reason of the foregoing, DARLIN SOTO suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARLIN SOTO

Pursuant to §1983 (EXCESSIVE PRE-ARRAIGNMENT DETENTION)

34. Paragraphs 1 through 33 are hereby realleged and incorporated by reference herein.

35. That Defendants had no legal cause nor excuse to detain DARLIN SOTO for a prolonged period prior to arraignment.

36. That Defendants detained DARLIN SOTO excessively prior to arraignment in violation of DARLIN SOTO's civil rights.

37. That Defendants detained DARLIN SOTO with ill will and/or negligently.

38. That Defendants should have expeditiously investigated this matter and released DARLIN SOTO.

39. By reason of Defendant's acts and omissions, Defendants, acting under color of state law and within the scope of its authority, in gross and wanton disregard of DARLIN SOTO's rights, deprived DARLIN SOTO of his liberty when it subjected him to an unlawful, illegal and excessive detention, in violation of his due process rights pursuant to the Fourth and

Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

40. That in so acting, Defendant CITY, abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.

41. That upon information and belief, in 2010, Defendant CITY had a policy or routine practice of detaining and imprisoning individuals for excessive periods prior to arraignment.

42. That upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately train and supervise their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

43. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

44. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant NYPD to the constitutional rights of arrestees and were the cause of the violations of DARLIN SOTO's rights alleged herein.

45. That Defendant, through its officers, agents and employees, unlawfully incarcerated DARLIN SOTO for an excessive period of time prior to arraignment.

46. By reason of the foregoing, DARLIN SOTO suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

WHEREFORE, DARLIN SOTO respectfully requests that judgment be entered:

1. Awarding DARLIN SOTO compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding DARLIN SOTO punitive damages in an amount to be determined by a jury;
3. Awarding DARLIN SOTO interest from February 27, 2017 and
4. Awarding DARLIN SOTO reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
February 27, 2020

Roberta D. Asher
By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDEX NO.

DARLIN SOTO,

Plaintiff,

**ATTORNEY'S
VERIFICATION**

-against-

POLICE OFFICER DYWAYNE HARRIS (Shield #10473) and
THE CITY OF NEW YORK,

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
February 27, 2020

Roberta D. Asher
ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Plaintiff,

-against-

POLICE OFFICER DYWAYNE HARRIS (Shield #10473) and THE CITY OF NEW YORK,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: Roberta D. Asher
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2020 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2020 , at 9:30
A.M.
Dated: